

THE CLEARLY COLLECTIVE

WHOLESALE PROGRAM

TERMS & CONDITIONS

Effective October 31, 2025

The Clearly Collective partners with select retailers who share our commitment to craftsmanship, storytelling, and design integrity. Our wholesale program is designed to ensure long-term success for both our retail partners and our studio, maintaining consistency in presentation, pricing, and product experience across all channels. These Terms & Conditions outline the baseline requirements for all wholesale partnerships. Submitting a wholesale order form constitutes acknowledgment and acceptance of the following terms.

1. ELIGIBILITY & ONBOARDING

Wholesale access is reserved for:

- Valid resale certificate or tax-exempt documentation
- Established retail presence (physical storefront or professional e-commerce site)
- Demonstrated alignment with luxury/contemporary market positioning
- Minimum 12 months in business (exceptions considered case-by-case)

Approval is determined based on brand alignment, regional coverage, and channel strategy. Most applications are reviewed within five to seven business days.

2. ORDER REQUIREMENTS & MINIMUMS

THE CLEARLY COLLECTIVE

Partnership Tier	Opening Order	Reorder Minimum	Minimum Order Quantity per SKU
Boutique	\$2,100	\$2,000	25 units
Premium Partner*	\$10,000	\$4,000	50 units

**Premium Partner status is by invitation, granted after four successful order cycles demonstrating brand alignment and consistency.*

MOQ applies per design per SKU unless otherwise agreed in writing.

3. PAYMENT TERMS & POLICIES

3.1 Payment Structure

- Payment Terms: Due upon shipment
- Lead Time: Standard production lead times range from 10–45 days from deposit receipt, depending on seasonality and order complexity.
- Net 15 terms may be extended following two completed order cycles with timely payment history.

3.2 Accepted Payment Methods

- Wire transfer (preferred - no fees)
- ACH transfer
- Credit card (3% processing fee applies)
- All transactions in conducted in USD

3.3 Late Payment Policy

- Accounts past due incur 0.75% monthly interest after 30 days

THE CLEARLY COLLECTIVE

- Orders suspended for accounts 60+ days past due
- Reinstatement requires payment in full plus any accrued charges

4. PRICING INTEGRITY & MAP POLICY

4.1 Minimum Advertised Prices (MAP)

To preserve brand equity and ensure fairness across retail channels, all partners must maintain the published Minimum Advertised Price (MAP):

Product	MAP
38×38 Silk Scarf (Summers/Metropolitan Collection)	\$185
38×38 Silk Scarf (Collegiate Collection)	\$155
12×12 Silk Scarf	\$95
Scarf Buckle	\$15

4.2 Enforcement

- Quarterly monitoring of all retail channels
- 48-hour cure period upon violation notice
 - a. First violation: Written warning
 - b. Second violation: 30-day ordering suspension
 - c. Third violation: Partnership termination

Repeated MAP violations may result in suspension or permanent loss of wholesale privileges.

5. DISTRIBUTION & SALES CHANNEL

THE CLEARLY COLLECTIVE

5.1 Authorized Channels

- Physical retail locations
- Partner-owned e-commerce sites
- Partner-controlled social media shops

5.2 Prohibited Without Authorization

- Third-party marketplaces (Amazon, eBay, Etsy, etc.)
- Flash sale sites
- Discount/outlet online and in-person locations
- Subscription boxes or resale aggregators

Online marketplaces or third-party resellers are not permitted unless expressly approved in writing by The Clearly Collective.

6. ORDER CHANGES & EXCLUSIVITY

6.1 Order Changes

Once confirmed, orders may not be modified without written approval. Adjustments requested after production begins may incur additional costs or affect delivery timelines.

6.2 Exclusivity

Exclusive designs or regional exclusivity may be available for qualifying partners and are evaluated individually based on order volume and brand alignment.

Exclusivity applies to the approved design and product format only and requires a seasonal commitment.

7. SHIPPING & FULFILLMENT

Orders ship from our fulfillment partner within 3–5 business days of final payment. Freight, customs duties, and insurance are the retailer's responsibility.

THE CLEARLY COLLECTIVE

The Clearly Collective is not liable for delays resulting from carriers, customs, or other circumstances beyond our control.

Production lead times commence upon receipt of deposit and final order confirmation. Backordered or pre-order items will ship in the next available production cycle unless otherwise agreed in writing.

Title and risk of loss transfer to the retailer upon carrier pickup.

8. RETURNS, DAMAGES & CANCELLATIONS

All wholesale sales are final.

Claims for defective or damaged merchandise must be submitted within seven (7) days of delivery. Approved claims may be credited or replaced at The Clearly Collective's discretion.

Cancellations after deposit confirmation will result in forfeiture of the deposit in full.

9. MARKETING & PRESENTATION

Retail partners are expected to maintain brand integrity across visual merchandising, product naming, and storytelling.

Products must be sold under The Clearly Collective brand name and may not be repackaged, altered, or co-branded without written approval.

Co-branded, private-label, or derivative applications must be reviewed and approved in writing prior to production.

Use of The Clearly Collective's imagery or creative assets for marketing must be approved in advance and aligned with current brand guidelines.

10. INTRODUCTORY PARTNERSHIPS

THE CLEARLY COLLECTIVE

New partners may be offered a one-time introductory opportunity to trial select SKUs or lower MOQs during the first order cycle.

These offers are discretionary, limited to one season or one order, and do not apply to reorders.

11. PREMIUM RETAILER PROGRAM

The Clearly Collective's invitation-only Premium Retailer Program recognizes luxury partners who demonstrate exceptional alignment, consistent performance, and brand integrity.

Premium partners receive:

- Early access to new collections
- Exclusive seasonal collaborations
- Marketing and activation opportunities
- Extended seasonal payment terms by invitation

12. INTELLECTUAL PROPERTY

All designs, artwork, and creative assets remain the sole intellectual property of The Clearly Collective unless otherwise specified in a signed licensing or exclusivity agreement.

Use of The Clearly Collective's name, marks, or imagery in marketing requires prior written approval.

13. ORDER FLOW SUMMARY

Inquiry → Approval → Deposit & Confirmation → Production (10–45 days) → Shipment → Final Balance → Delivery

14. CONFIDENTIALITY

THE CLEARLY COLLECTIVE

All wholesale pricing, documentation, and brand materials provided by The Clearly Collective are confidential and intended solely for the internal use of approved retail partners.

15. TERMINATION & PARTNERSHIP INTEGRITY

The Clearly Collective reserves the right to refuse, suspend, or terminate wholesale partnerships at its sole discretion to maintain brand integrity, pricing consistency, and channel alignment.

16. GOVERNING LAW

This agreement is governed by and construed in accordance with the laws of the State of New York, without regard to conflict of law principles.

WHOLESALE CONTACT

Email: wholesale@theclearlycollective.com